

Subedar Singh v. State of U.P.

Allahabad High Court · Division Bench · 14 December 2020 · Writ-C No. 22129 of 2020 · **Writ disposed; Executive Engineer directed to decide the pending clause 6.5 billing representation expeditiously; if there is no such dispute, supply may be restored only after payment of outstanding dues as determined.**

HEADNOTE

A consumer seeking mandamus to restore disconnected supply, having already filed a proper clause 6.5 representation before the Executive Engineer against the bill, is left to that statutory route. The High Court will not decide the billing dispute or order restoration on merits. The Executive Engineer must decide the representation expeditiously in accordance with law. Where there is no such dispute, the connection can be restored only after the consumer pays outstanding dues after their determination.

FACTUAL SUMMARY

Subedar Singh sought a writ of mandamus to restore his electricity connection. He said that, following Writ-C No. 3243 of 2020, he had filed a proper representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, Dakshinanchal Vidyut Vitran Khand, Kanpur Nagar, disputing the bill; the dispute was still undecided and supply unrestored. Counsel for the licensee submitted that restoration could not be considered until outstanding electricity dues were cleared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending clause 6.5 representation and restoration of supply

HOLDING

Where the consumer has already moved a proper clause 6.5 application before the Executive Engineer against the electricity bill, a writ seeking mandamus to restore supply is disposed without a merits decision, with a direction that the Executive Engineer decide that representation expeditiously in accordance with law. If there is no such dispute, the connection can be restored only after the consumer pays outstanding dues after their determination. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court declined to mandamus restoration or to decide the bill, and left the pending clause 6.5 representation as the forum for the dispute. ¶ 1

6.5-representation-as-appropriate-remedy A proper application already made to the Executive Engineer under clause 6.5, in line with the order dated 01.10.2019, was treated as the appropriate remedy and that officer was directed to decide it expeditiously in accordance with law. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The billing objection was before respondent no. 4, the Executive Engineer, Dakshinanchal Vidyut Vitran Khand, Kanpur Nagar, and that officer was placed under obligation to decide it. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING DISPUTE AND ENTITLEMENT TO RESTORATION OF SUPPLY

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
-----------	-------------	-------------	----------	-----------

<i>Writ-C No. 3243 of 2020</i>			petitioner	Referred
--------------------------------	--	--	-----------------------	---------------------

SCJ-2429 · Subedar Singh v. State of U.P. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.